Brazoria County District Court

Cause No. 2026-CV-0015

Rebecca Blackwell, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	6-28-26
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant, by and through its undersigned counsel, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

I. General Denial

Pursuant to Texas Rule of Civil Procedure 92, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence as required by the Constitution and laws of the State of Texas.

II. Affirmative Defenses

First, Defendant asserts the defense of proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. The incident dsecribed in the Petition occurred at an intersection, and the injuries alleged were caused in whole or in part by the negligence of Plaintiff, which bars or reduces any recovery.

Second, Defendant asserts that the incident was caused by the acts or omissions of a third party over whom Defendant had no control, and Defendant requests that the trier of fact designate such person as a responsible third party under Section 33.004.

Third, Defendant asserts that Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by failing to exercise ordinary care to minimize the losses claimed, and any recovery must be reduced accordingly.

Defendant reserves the right to amend this Answer as discovery proceeds.